

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA**

Tentative Ruling

**202200567250CUPA: Ly Ti Tong vs. American Auto Auction Group LLC
08/06/2026 in Department 20
Motion to Tax Costs**

Motion: Defendant American Auto Auction Group LLC's ("Defendant") Motion to Tax Claimed Costs of Plaintiff Ly Ti Tong

Tentative: Defendant's Motion to Tax Costs is GRANTED as follows:

1. Item 1: Filing and Motion Fees of \$1,194.50 are taxed in the amount of \$363.06, reducing the total recoverable fees to \$831.44.
2. Item 4: Deposition costs of \$65,834.95 are taxed in the amount of \$19,158.51 reducing the total recoverable deposition costs to \$46,676.44.
3. Item 5: Service of process costs of \$6,098.37 are taxed in the amount of \$545.72 reducing the total recoverable costs to \$5,552.65.
4. Item 8b: Expert fees of \$216,702.45 are taxed in the amount of \$60,912.50 reducing the total recoverable costs to \$155,789.95.
5. Item 11: Court reporter fees of \$56,453.24 are taxed in the amount of \$33,007.78 reducing the total recoverable costs to \$23,445.46.
6. Item 13: Costs for models, enlargements, and photocopies of exhibits of \$36,453.19 are taxed in the amount of \$23,637.54, reducing the total recoverable costs for this category to \$12,815.65.
7. Item 15: Costs of \$74,803.85 for items separate from interest sought pursuant to Civil Code section 3291 are taxed in the amount of \$36,693.03, reducing the recoverable costs (separate from section 3291 interest) of \$38,110.82.

The full amount of taxed costs is \$174,318.14. The motion is otherwise DENIED in all respects.

Total costs of \$ \$283,222.41 plus interest awarded pursuant to Civil Code section 3291 as set forth in the tentative on Plaintiff's motion for prejudgment interest are awarded to Plaintiff and shall be added to the amended judgment.

Plaintiff shall give notice.

Discussion:

Ladas v. California State Auto. Assn. (1993) 19 Cal.App.4th 761 summarizes the standard applicable to a motion to tax/strike ordinary costs.

“[S]ection 1033.5, enacted in 1986, codified existing case law and set forth the items of costs which may or may not be recoverable in a civil action. [Citation.]” ([Citation].) An item not specifically allowable under subdivision (a) nor prohibited under subdivision (b) may nevertheless be recoverable in the discretion of the court if “reasonably necessary to the conduct of the litigation rather than merely convenient or beneficial to its preparation.” (§ 1033.5, subd. (c)(2).)

If the items appearing in a cost bill appear to be proper charges, the burden is on the party seeking to tax costs to show that were not reasonable or necessary. On the other hand, if the items are properly objected to, they are put in issue and the burden of proof is on the party claiming them as costs. ([Citations].) Whether a cost item was reasonably necessary to the litigation presents a question of fact for the trial court and its decision is reviewed for abuse of discretion. ([Citation].) However, because the right to costs is governed strictly by statute ([citation]) a court has no discretion to award costs not statutorily authorized. ([Citations].)

(*Id.* at 773–774.)

To recover a cost, it must be reasonably necessary to the litigation and reasonable in amount. (*Perko's Enterprises, Inc. v. RRNS Enterprises* (1992) 4 Cal.App.4th 238, 244; (Code Civ. Proc. §1033.5, subd.(a), (c)(2),(3),(4).) Determination of whether a cost is reasonable is within the trial court's discretion. (*Ladas v. California State Auto. Assn.* (1993) 19 Cal.App.4th 761, 774; *Thon v. Thompson* (1994) 29 Cal.App.4th 1546, 1548.) “[T]he mere filing of a motion to tax costs may be a ‘proper objection’ to an item, the necessity of which appears doubtful, or which does not appear to be proper on its face. [Citation]. However, ‘[i]f the items appear to be proper charges the verified memorandum is prima facie evidence that the costs, expenses and services therein listed were necessarily incurred by the defendant [citations], and the burden of showing that an item is not properly chargeable or is unreasonable is upon the [objecting party].’ [Citation].” (*Nelson v. Anderson* (1999) 72 Cal.App.4th 111, 131.) “The court's first determination, therefore, is whether the statute expressly allows the particular item, and whether it appears proper on its face. [Citation]. If so, the burden is on the objecting party to show them to be unnecessary or unreasonable.” (*Ibid.*)

1. Items 1: Filing and Motion Fees (\$1,178.75)

Filing and motion fees are allowable as costs. (Code Civ. Proc., § 1033.5, subd. (a)(1).) Supporting documentation need not be attached to the memorandum of costs and is required only if the costs are put in issue by a motion to tax costs. Code of Civil Procedure section 1033.5, subdivision (a)(14) allows for recovery of “[f]ees for the electronic filing or service of documents through an electronic filing service provider if a court requires or orders electronic filing or service of documents”. On May 5, 2025, electronic filing in the Ventura Superior Court became mandatory. (See Administrative Order No. 25.03)

To the extent Plaintiff incurred fees for electronically filing documents after May 4, 2025, these fees are recoverable. The Judicial Council has mandated that all Courts accepting electronically filed documents use independent, certified Electronic Filing Service Providers (EFSPs). In

Ventura, parties are required to select from the list of certified EFSPs listed on the Court's website. One Legal is on that list.

Therefore, the Court taxes only the following filing-related fees: (1) \$161.39 for the fees related to Express Services Inc. and (2) \$201.67 for unsupported fees or non-mandatory electronic filing fees.

Total taxed costs are \$363.06.

2. Item 4: Deposition Costs (\$65,834.95)

“Taking, video recording, and transcribing necessary depositions, including an original and one copy of those taken by the claimant and one copy of depositions taken by the party against whom costs are allowed.” (Code Civ. Proc., § 1033.5, subd. (a)(3)(A).) Certificates of nonappearance and late cancellation fees are recoverable deposition expenses. (See *Garcia v. Tempur-Pedic North America, LLC* (2024) 98 Cal.App.5th 819, 825.) Standard transcription fees for “necessary” depositions are recoverable, but the extra cost for expediting transcripts may be allowed only in the exercise of the trial court's discretion.” (*Hsu v. Semiconductor Systems, Inc.* (2005) 126 Cal.App.4th 1330, 1342.)

Deposition costs are taxed as follows: \$784.05 (Fractor), \$2,890.01 (Suter), \$571.85 + \$49.00 (Ausbon), \$2,220.40 + \$1,312.50 (Bloink – duplicate costs attributable to Shaw), \$1,295.10 + \$49.00 (Wu), \$1,966.95 (Milton), \$2,163.85 (Patel), \$959.40 (Pickart), \$976.40 (Segil), \$3,192.50 (delivery fees), \$567.50 (Frishberg), \$160.00 (Mas)

Total taxed costs are \$19,158.51.

3. Item 5: Service of Process Costs (\$6,098.37)

Service of process costs are recoverable. (Code Civ. Proc., § 1033.5, subd. (a)(4).) Duplicative or unsupported charges are taxed as follows: \$219.49 (Grace Lee); \$106.49 (Allen Wu); \$219.74 (Marc Broberg).

Total taxed costs are \$545.72.

4. Item 8b: Expert Fees (\$216,702.45)

“If an offer made by a plaintiff is not accepted and the defendant fails to obtain a more favorable judgment or award in any action or proceeding other than an eminent domain action, the court or arbitrator, in its discretion, may require the defendant to pay a reasonable sum to cover postoffer costs of the services of expert witnesses, who are not regular employees of any party, actually incurred and reasonably necessary in either, or both, preparation for trial or arbitration, or during trial or arbitration, of the case by the plaintiff, in addition to plaintiff's costs.” (Code Civ. Proc., § 998, subd. (d).)

The Court finds that Plaintiff is entitled to reasonable expert fees but taxes the costs as follows finding that the requested fees are unreasonable or unsupported:

\$43,200 (Segil), \$15,000 (Raji), \$2,712.50 (OTAL Cognitive)

Total taxed costs are \$60,912.50.

5. Item 11: Court Reporter Fees (\$56,453.24)

Transcripts of court proceedings not ordered by the court are not recoverable costs. (Code Civ. Proc., § 1033.5, subd. (b)(5).) Plaintiff's counsel concedes this but neither party identifies what portion of the requested costs are improper, leaving that exercise for the Court.

Total taxed costs are \$33,007.78 representing transcript fees not ordered by the Court.

6. Item 13: Models, Enlargements and Photocopies (\$36,453.19)

Models, enlargements and photocopies of exhibits, and the electronic presentation of exhibits are recoverable if reasonably helpful to the trier of fact. (Code Civ. Proc. §1033.5, subd. (a)(13).) "A prevailing party is not entitled to recover costs associated with preparing photocopies of exhibits and demonstratives under section 1033.5(a)(13) if the items were not presented to the trier of fact."(*Segal v. ASICS America Corp.* (2022) 12 Cal.5th 651.)

Plaintiff has not established that any of the exhibit binders, redwells, tabs, or copies are properly recoverable costs. Defendant has properly placed the claimed costs in issue. Additionally, Plaintiff has failed to carry her burden to identify which exhibits were actually shown the jury and their associated expense. (*Ladas v. California State Auto. Assn.*, *supra*, 19 Cal.App.4th 761, 774 ["if items are properly objected to, they are put in issue and the burden of proof is on the party claiming them as costs"].) Defendant has requested that costs of \$23,637.54 be taxed.

Total taxed costs are \$23,637.54.

7. Item 15: "Other"

The memorandum of costs seeks \$2,107,368.46 for trial technician, trial consultant, transportation, lodging, and prejudgment interest but the attachments reflect costs sought of \$2,182,172.31.

Prejudgment interest is cost. (*Jones v. John Crane, Inc.* (2005) 132 Cal.App.4th 990, 1012.) The Court intends to award interest pursuant to Civil Code section 3291 as set forth in the tentative on Plaintiff's motion for prejudgment interest.

The motion to tax costs is granted for the following requested costs which either are not reasonably necessary to the litigation, are not reasonable in amount, or are unsupported:

Trial technician costs for travel, parking, hotel and moving fees: \$2,296.02 is taxed.

Trial consultant costs: \$21,500.00 is taxed.

Transportation costs: \$2,590.00 is taxed

Lodging: \$10,307.01 is taxed.

The total taxed costs are \$36,693.03.